

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND CITY CLERK OF THE CITY OF CHEYENNE TO ENTER INTO AN AGREEMENT FOR THE TRADE OF REAL PROPERTY OWNED BY THE CITY OF CHEYENNE, BEING A PARCEL OF LAND LOCATED GENERALLY EAST OF MISSILE DRIVE AND SOUTH OF THE RIGHT-OF-WAY OF WEST 22ND STREET, CHEYENNE, WYOMING, TO JINA MORANDIN COSTELLO, JEANIE M. GROGAN, K. TIPPY COSTELLO, AND KYLE W. BREEDEN, IN EXCHANGE FOR CERTAIN REAL PROPERTY GENERALLY LOCATED EAST OF MISSILE DRIVE AND NORTH OF THE RIGHT-OF-WAY OF WEST 22ND STREET, CHEYENNE, WYOMING."

WHEREAS, the City of Cheyenne is the owner of a parcel of land which is generally located east of Missile Drive and south of the right-of-way of West 22nd Street, consisting of 6,098 square feet, and having an appraised value of \$6,098.00; and

WHEREAS, the City-owned parcel is proposed to be traded for real property owned by Jina Morandin Costello, Jeanie M. Grogan, K. Tippy Costello, and Kyle W. Breeden, generally located east of Missile Drive and north of the right-of-way of West 22nd Street, consisting of 43,560 square feet, and having an appraised value of \$43,560.00; and

WHEREAS, the parties wish to trade these interests as provided in Wyo. Stat. § 15-1-112(b)(ii) pursuant to the attached proposed Land Exchange Agreement between the parties; and

WHEREAS, the estimated appraised value of the property owned by the City is \$6,098.00 and the estimated appraised value of the property owned by Jina Morandin Costello, Jeanie M. Grogan, K. Tippy Costello, and Kyle W. Breeden, is \$43,560.00; and

WHEREAS, the City will pay additional cash consideration to Jina Morandin Costello, Jeanie M. Grogan, K. Tippy Costello, and Kyle W. Breeden to equalize the values of the interests to be traded and to compensate said persons for the acquisition of certain permanent and temporary easements needed for the construction of storm water drainage improvements known generally as the "Snyder Storm Sewer," and

WHEREAS, the Governing Body of the City of Cheyenne does hereby determine that the parcel of land owned by the City is no longer being used or needed for any public purpose and that said land may be traded to Jina Morandin Costello, Jeanie M. Grogan, K. Tippy Costello, and Kyle W. Breeden, as partial consideration for the acquisition of the parcel of land owned by said persons and for the acquisition of certain permanent and temporary easements as needed to facilitate the Snyder Storm Sewer project; and

WHEREAS, notice of the proposed trade and of the public hearing regarding the proposed trade have been advertised in a newspaper of general circulation in the manner required by Wyo. Stat. § 15-1-112; and

WHEREAS, the public hearing required by Wyo. Stat. § 15-1-112 was conducted on October 14, 2013, prior to the final passage of this Resolution.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the above-described parcel of land owned by the City is hereby declared as surplus and that the Mayor and City Clerk are authorized to enter into an agreement, in a form which is substantially similar to the form of the proposed Land Exchange Agreement attached to this Resolution, to exchange the said City-owned parcel and to pay additional cash consideration to acquire that certain parcel of land and those certain permanent and temporary easements from Jina Morandin Costello, Jeanie M. Grogan, K. Tippy Costello, and Kyle W. Breeden as described in said proposed agreement, and to execute all further and additional documents as necessary to achieve the exchange of said land as directed herein.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, _____.

Richard L. Kaysen, Mayor

(Seal)

Attest:

Carol Intlekofer, City Clerk

LAND EXCHANGE AGREEMENT

Date: 10/9/2013

This Agreement is made this _____ day of _____, 2013, by and between Jeanie M. Grogan, an unmarried person, K. Tippy Costello and Kyle W. Breeder, Husband and Wife, Cheyenne, Wyoming 82001 ("hereafter collectively referred to as "the Grogans"), and the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, having its principal offices at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City").

In consideration of the mutual benefits and obligations set forth in this Agreement, the Grogans agree to sell and convey to the City, and the City agrees to purchase and take from the Grogans, that certain real property situated in Cheyenne, Laramie County, Wyoming (hereafter designated as "Parcel A"), containing 43,560 square feet, having an appraised value of Forty-Three Thousand Five Hundred Sixty Dollars (\$43,560.00), which parcel is particularly described in that certain document entitled "Snyder Storm Sewer, Exhibit A," which is attached to this Agreement and incorporated herein by reference, and the City agrees to sell and convey to the Grogans and the Grogans agree to purchase and take from the City, that certain real property situated in Cheyenne, Laramie County, Wyoming (hereafter designated as "Parcel B"), containing 6,098 square feet, having an appraised value of Six Thousand Ninety-Eight Dollars (\$6,098.00), which parcel is also particularly described in that certain document entitled "Snyder Storm Sewer, Exhibit A." Except as otherwise provided by this Agreement, the conveyance of Parcel A to the City shall include all improvements located thereon and all right, title and interest of the Grogans in and to the adjacent streets and alleys, and the conveyance of Parcel B to the Grogans shall include all improvements located thereon and the interest of the City in adjacent streets, alleys, and public rights-of-way, provided, however, that the land exchange provided for in this Agreement shall not have the effect of vacating any public rights-of-way or any easements of record.

SECTION ONE. TERMS OF LAND EXCHANGE AND OTHER CONSIDERATION:

(A) The City desires to acquire Parcel A from the Grogans to be used as an outfall area for an 8' X 8' drainage structure which will carry surface waters from the Upper Capitol Basin. The Grogans have agreed to sell Parcel A to the City and to grant a temporary construction easement and a permanent easement for the 8' X 8' drainage structure which will cross the Grogans' land to the east of Parcel A. In consideration, the City will pay the sum of Thirty-Four Thousand Nine Hundred Fifty Dollars (\$34,950.00) for Parcel A, the sum of Six Thousand Fifty Dollars (\$6,050.00) for the temporary construction easement, the sum of Fifteen Thousand Dollars (\$15,000.00) for the permanent easement, and will convey Parcel B to the Grogans. The locations and areas of the temporary and permanent easements are legally described and illustrated in that certain document entitled "Snyder Storm Sewer, Exhibit B," which is attached to this Agreement and incorporated herein by reference.

(B) At closing, the City will issue a check, drawn on funds in the hands of the City Treasurer, in the amount of Fifty-Six Thousand Dollars (\$56,000.00), which includes payment of the purchase price of Thirty-Four Thousand Nine Hundred Fifty Dollars (\$34,950.00) for Parcel A, payment in the amount of Six Thousand Fifty Dollars (\$6,050.00) for the temporary construction easement, and Fifteen Thousand Dollars (\$15,000.00) for the permanent easement described in "Snyder Storm Sewer Exhibit B."

(C) In addition, at closing, the City will execute a Quitclaim Deed conveying to the Grogans all of the City's right, title and interest in Parcel B.

(D) In addition, at closing, the Grogans shall execute and deliver a Quitclaim Deed conveying to the City all of the Grogans' right, title and interest in Parcel A and such instruments as shall be necessary to secure for the City that certain permanent easement and temporary construction easement for storm sewer purposes as legally described and illustrated in "Snyder Storm Sewer, Exhibit B."

(E) The conveyance of Parcel A by the Grogans to the City and the conveyance of Parcel B by the City to the Grogans will be subject to the limitations of this Agreement. The Grogans agree to accept the City's check in the amount specified in subsection (A) of this Section as full and final payment of consideration for the purchase of Parcel A and for the permanent and temporary easements legally described and illustrated in that certain document entitled "Snyder Storm Sewer, Exhibit B."

(F) The City shall have no obligation to pay any sum of money or to perform any other act other than to pay the purchase price for Parcel A and for the temporary construction and permanent easements as shown on "Snyder Storm Sewer Exhibit B," to convey to the Grogans title to Parcel B, and to comply with the special terms and conditions of this Agreement. The Grogans shall have no obligation to pay any sum of money or to perform any act other than to convey title to Parcel A to the City and to execute such instruments as necessary to secure for the City that certain permanent easement and the temporary construction easement described and illustrated on "Snyder Storm Sewer, Exhibit B."

SECTION TWO. TITLE; TITLE INSURANCE; CLOSING: Conveyance of title to Parcels A and B shall be by quitclaim deeds. The City shall pay the premium for a standard form minimum value title insurance policy issued by a title insurance company authorized to do business in the State of Wyoming to insure the City's title to Parcel A. If desired by the Grogans, the Grogans shall pay the premium for a standard form title insurance policy issued by a title insurance company authorized to do business in the State of Wyoming to insure the Grogans' title to Parcel B. Title to be conveyed, in each instance, shall be good and marketable, subject only to liens, encumbrances, restrictions, easements and other burdens which are not objected to in writing within twenty (20) days after the City's receipt of a commitment for the issuance of a title insurance policy for Parcel A or within twenty (20) days after the Grogans' receipt of a commitment for the issuance of a title insurance policy for Parcel B. In the event any defect in title to Parcel A is not cured by the Grogans before closing, the City shall have the right, in its sole discretion, to cancel this Agreement. In the event any defect in title to Parcel B is not cured by the City before closing, the Grogans shall have the right, in their sole discretion, to cancel this Agreement. Closing shall occur when Laramie County Abstract & Title Company, Cheyenne, Wyoming, is in a position to record all documents required under this Agreement, to make all disbursements, and to issue the title insurance policies provided for herein, but in no event later than twenty (20) days after the date of this Agreement, unless extended in writing by mutual agreement of the parties.

SECTION THREE. ASSESSMENTS: If, at the time of transfer of title, either Parcel A or Parcel B, or any part of either parcel, is subject to an assessment or assessments payable in installments, all such installments not due or delinquent at the time of transfer shall nevertheless be deemed to be due and payable at such time, and all such assessments shall be paid and discharged by the Grogans with respect to Parcel A and by the City with respect to Parcel B prior to closing.

SECTION FOUR. CLOSING COSTS: Except as otherwise provided in this Agreement, closing costs shall be divided between the parties at closing, except that the City shall pay any and all fees associated with recording the Quitclaim Deed to be delivered by the Grogans at closing with respect to Parcel A and except that the Grogans shall be responsible for any and all fees associated with recording the Quitclaim Deed to be delivered by the City at closing with respect to Parcel B.

SECTION FIVE. RISK OF LOSS; MAINTENANCE; TRANSFER OF POSSESSION: Risk of loss or damage by fire or other casualty to either Parcel A or Parcel B, or any part of either parcel, prior to closing shall be the risk of the current owner thereof. In the event of such loss or damage to Parcel A prior to closing, the City may, in its sole discretion, cancel this Agreement or, upon the City's election, the City may proceed with the purchase of Parcel A and the Grogans shall cooperate with regard to the assignment of its rights which are assignable under any insurance policy or policies applicable to any loss with respect to Parcel A. In the event of such loss or damage to Parcel B prior to closing, the Grogans may, in their sole discretion, cancel this Agreement or upon the Grogans' election, the Grogans may proceed with the purchase of Parcel B and the City shall cooperate with regard to the assignment of its rights which are assignable under any insurance policy or policies applicable to any loss with respect to Parcel B. Possession of each Parcel subject to this Agreement shall be transferred at closing.

SECTION SIX. COMPLIANCE WITH LAWS; ZONING; OPPORTUNITY TO REVIEW APPRAISAL REPORT: The Grogans warrant that all existing uses of Parcel A are lawful and in compliance with all federal, state, and municipal laws and ordinances, including ordinances relating to environmental protection and zoning. It is mutually understood and agreed that the Grogans, or their family members, have been making use of Parcel B for the storage of equipment and other materials. For this reason, the City expressly disclaims any warranties that all existing uses of Parcel B are lawful or in compliance with all federal, state, and municipal laws and ordinances, including ordinances related to environmental protection and zoning. The Grogans warrant and represent that they have no knowledge of any fact or circumstance that would preclude the City from using Parcel A for the purposes of constructing and using certain drainage improvements or for such other municipal purposes as may be determined by the City in its discretion subject to the terms of this Agreement. The City and the Grogans have received copies of the appraisal report for Parcels A and B prepared by Appraisals, Inc., Cheyenne, Wyoming, and have knowledge of the contents thereof.

SECTION SEVEN. BROKER'S COMMISSION: The parties mutually warrant and represent that no brokers or agents have been employed or retained by either party in connection with the negotiation or consummation of the purchase contemplated by this Agreement and that neither party shall become obligated to pay any commission of any kind or nature to any broker or agent upon the closing of this purchase.

SECTION EIGHT. NOTICE: All notices required by this Agreement shall be in writing and shall be served on the parties at their addresses, as indicated above, or on their attorneys at their business addresses. The mailing of a notice by registered or certified mail, return receipt requested, shall serve as sufficient notice. Notices may also be served by personal delivery. Notices may also be served by e-mail, or by the use of a facsimile machine, so long as a copy of the notice sent by e-mail or a copy of the notice sent by facsimile, with proof of e-mail or facsimile transmission, is also sent by regular mail on the date of transmission.

SECTION NINE. BINDING EFFECT OF AGREEMENT: This Agreement shall not be binding upon the City until such time as this Agreement has been approved by the Governing Body of the City of Cheyenne. Except as provided herein, this Agreement, and the covenants and conditions herein, shall bind and inure to the benefit of the parties, and their respective heirs, personal representatives, successors and assigns. Unless this Agreement otherwise requires, the covenants of this Agreement shall survive the transfer of title.

SECTION TEN. CITY'S OBLIGATION TO TAKE PARCEL A ON AN "AS IS" BASIS; GROGANS' OBLIGATION TO TAKE PARCEL B ON AN "AS IS" BASIS; CITY'S OBLIGATIONS TO INSTALL FENCING AND A BERM; GROGANS' OBLIGATION TO REMOVE CERTAIN ITEMS OF PERSONAL PROPERTY FROM PARCEL A; SPECIAL CONDITIONS: The City shall take title to Parcel A in its present "as is" condition. The Grogans shall have no obligation to remove underground utilities or facilities, but the Grogans shall, prior to closing, remove from Parcel A all vehicles and other items of personal property which are not attached to the land or which are readily severable from the land. The Grogans agree to take title to Parcel B in its present "as is" condition and the City expressly disclaims any warranties as to the condition of Parcel B or that Parcel B is fit for future uses or purposes of the Grogans, or their successors in interest.

(A) The City will take all reasonable and necessary steps to ensure that flows from the 8' X 8' storm sewer outfall, to be constructed within Parcel A, shall not enter upon or cause any damage to adjacent landowners.

(B) The City shall, at its expense, install a six foot (6') chain link fence along the eastern and southern boundaries of Parcel A to control access from Parcel A to adjacent properties owned by the Grogans, the Costello Family Trust, and Jina Morandin, et al.

(C) The City shall respond in a reasonably prompt fashion to written and oral notifications received from the landowners, referenced in subsection (B) of this Section, in the event persons access said properties from Parcel A.

(D) The City shall not use Parcel A as a park or public recreation area.

(E) The City shall install a three foot (3') high berm in the location described and illustrated in "Snyder Storm Sewer Berm, Exhibit C" attached hereto and incorporated herein by reference.

SECTION ELEVEN. GOVERNMENTAL IMMUNITY; CHOICE OF LAWS; VENUE: Except for enforcement of the terms and conditions of this Agreement, the City of Cheyenne reserves all immunities and defenses provided for in the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 *et seq.* This Agreement shall be governed by the laws of the State of Wyoming, and any actions relating to or arising out of this Agreement shall be brought in any court of competent jurisdiction in Laramie County, Wyoming.

SECTION TWELVE. EASEMENTS: It is mutually understood and agreed that Parcel A and Parcel B may be subject to easements for public water and sewer utilities, gas and electric utilities, telecommunications utilities, and other installations and fixtures. The obligations of the parties with respect to easements shall be governed by the provisions of Section Two of this Agreement relating to title and title insurance.

In witness thereof, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions hereof. Two (2) duplicate originals of this Agreement have been signed.

The Agreement date is the date of the last signature affixed to this Agreement.

Date	Jeanie M. Grogan
Date	K. Tippy Costello
Date	Kyle W. Breeden
Date:	Jina M. Costello, aka Jina Morandin Costello, aka Jina Morandin, in her individual capacity and in her fiduciary capacities.
	CITY OF CHEYENNE
Date	Richard L. Kaysen, Mayor
(SEAL) Attest:	
Carol Intlekofer, City Clerk	